

AGENCY AGREEMENT

13th November, 2023

between

Wooshin Labottach Co. Ltd

A Pharmaceutical Korean company, organized and existing under the laws of The Republic of Korea, whose registered office is at # 1907, Daerung P-Tower I, 212-8 Guro-Dong, Guru-Gu, Seoul 152-050 Republic of Korea and registration number is 113-86-49827, legal represented by Tack-Soo NAM, President
(hereinafter referred to as "PRINCIPAL")

And

Prospectia Overseas Consulting SL

A Pharmaceutical Consultancy Spanish company, organized and existing under the laws of The Kingdom of Spain, whose registered office is at Gran Via de les Corts Catalanes 936, 1er, 1a, 08018 Barcelona, Kingdom of Spain and registration number is B66560939, legal represented by Lluís Vila Prat, CEO,
(hereinafter referred to as "AGENT")

(when the context so admits WOOSHIN and Prospectia Overseas Consulting SL (and/or its respective Affiliate, as defined) shall be collectively referred to as "Parties" and each of them "Party")

Both Parties express a mutual recognition of their legal authority to undertake the present contract.

RECITALS:

1. Definitions

In this Agreement the following words shall have the following meaning:

"CUSTOMER" individual, sole proprietorship, partnership, company, joint venture, which buys PRODUCTS from **PRINCIPAL**

“PRODUCTS” means any products owned by the PRINCIPAL for which the PRINCIPAL wishes the AGENT to find Clients

“TERRITORY” Territory defined in Appendix 1

2. Appointment

PRINCIPAL appoints **AGENT**, and **AGENT** accepts this appointment, as AGENT of the PRODUCTS in the TERRITORY on the terms and conditions contained herein.

It is specially agreed that the AGENT has no labor relation with PRINCIPAL and, in no case, could claim for any import, or salary to PRINCIPAL.

3. AGENT Responsibilities

AGENT shall use its best efforts to actively seek distributors for the PRODUCTS in the TERRITORY in accordance with **PRINCIPAL**’s specifications for use, applications and limitations of such PRODUCTS in the TERRITORY. **AGENT** shall at all times use best efforts to protect and promote the interests and reputation of **PRINCIPAL** and the PRODUCTS.

The **AGENT** shall transmit to the **PRINCIPAL** all offers or orders received from potential CUSTOMERS, and the **PRINCIPAL** is free to accept or reject such offers. Unless otherwise agreed by the Parties, the **AGENT** is not authorized to make contracts on behalf of the **PRINCIPAL** nor is the **AGENT** authorized to receive payments on behalf of the **PRINCIPAL**

The AGENT shall provide updates on progress on a regular basis at least once a month

4. PRINCIPAL Responsibilities

The **PRINCIPAL** shall provide information and support the **AGENT** to enable potential CUSTOMERS to evaluate the sale of the Products in the Territory. In particular the **PRINCIPAL** must provide details regarding the Products, such details to include pricing, product samples.

The **PRINCIPAL** shall inform the **AGENT** immediately of any changes regarding the Product details or of any changes in the organization of the **PRINCIPAL** which may affect the **AGENT's** ability to fulfil the **AGENT's** responsibilities.

5. Sales Restrictions

AGENT shall neither directly nor indirectly manufacture or sell such goods that could or might compete with the PRODUCTS.

6. COMMISSION:

The **PRINCIPAL** shall pay a commission to the **AGENT** for each new Client introduced to it by the **AGENT**. The term of the commission commences from the date of the first shipment of the Products to the CUSTOMERS and will be for 5 (five) years.

The amount of the commission will be 3% (three percent) of the Invoice Amount paid by CUSTOMER, paid quarterly.

A commission of 3% (three percent) calculated on net amounts presented in the invoices, after The Invoices paid 100 % (one hundred percent) by CUSTOMER.

The amount of License fee is 10% (ten percent) from the Invoice Amount paid by CUSTOMER. The License fee 10% (ten percent) calculated on net amounts presented in the invoices, after the Invoice paid 100 % (one hundred percent) by CUSTOMER.

The **PRINCIPAL** shall provide the **AGENT** with a quarterly statement of the invoices paid by CUSTOMERS and a statement of the commissions due to the **AGENT** for the quarter. This statement will be sent to the **AGENT** within 7 days after the end of the quarter. The **AGENT** will then issue an invoice to the **PRINCIPAL** for the commissions due and the **PRINCIPAL** will provide payment within 30 (thirty) working days of the date of the **AGENT's** invoice.

In any case, the **AGENT** shall be entitled to commission on each contract signed with a client introduced by the **AGENT**.

7. Confidentiality

7.1. Confidential information shall be any and all specifications, samples, manuals, reports, documentation, test results, data, calculations, know-how or other information supplied by the Parties to each other in tangible form, and any knowledge which results from the co-operation between **AGENT** and the **PRINCIPAL** in particular in context with the approval/registration/certification of the PRODUCTS, or in writing specified as "CONFIDENTIAL INFORMATION". Provided that nothing shall be Confidential Information which:

- a) could be considered as unequivocal promotional material
- b) was in the public domain otherwise than by breach of this Agreement or a subsequent agreement
- c) was already known by its prior to its disclosure by the other Party or
- d) was already published at the time of disclosure by the other Party, or has since become so published through no fault of the Party concerned, or
- e) has been lawfully received by the Party from a third Party without breach of any obligation of confidentiality owed to the other Party.

7.2 During the period of this agreement as well as after its expiration or other termination **AGENT/PRINCIPAL** will not use Confidential Information obtained from **PRINCIPAL** in any way which would be against the best legal and economic interests of **PRINCIPAL**.

7.3 **AGENT agrees that** will not manufacture, purchase, sell or resell goods competing with the PRODUCTS, in particular, if these goods are manufactured using Confidential Information or are manufactured of parts, variations, modifications, versions, enhancements, improvements or processes developed out of Confidential information during the following periods:

- a) upon one year after termination due to breach committed by the **PRINCIPAL** or
- b) ten years after termination due to breach committed by the **AGENT** or
- c) three years after expiration of this Agreement

8. Effective Date, Duration and Termination

8.1 This Agreement shall become effective once both Parties have signed it and shall remain in full force and effect for a period of one (1) year from the date both Parties have signed. Two months previous to the end of the aforementioned period, Parties will start negotiations in order to sign a renewal of the present agreement.

8.2 Each Party shall have the right at any time to terminate this Agreement by giving notice to other Party in prior 30 days.

9. Force Majeure

The Parties hereto shall be exempt from liability in respect of any failure to perform the obligations under this Agreement or a contract concluded pursuant thereto due to circumstances unforeseeable and beyond their reasonable control. If such circumstances arise, the time for performance shall be extended by such period as is reasonable having regard to all the circumstances of the case. The Party wishing to claim relief under this clause shall without delay notify the other Party in writing accordingly.

10. Proprietary Rights

AGENT acknowledges the ownership by **PRINCIPAL** of proprietary information, trademarks, trade names, copyrights and patents or other such material so marked or so identified and agrees not to take any action that would impair such rights.

11. Contract Language and Notices

The languages for any communication in connection with this Agreement or any amendment shall be English language.

Any notice hereunder shall be in writing and shall be delivered to the other Party at its last known business address by the most expeditious means, including but not limited to first class mail, airmail, certified e-mail and e-mail. Such notices shall be effective upon receipt.

12. Applicable Law and Resolution of Disputes

This Agreement and all purchase Agreement concluded pursuant to it shall be governed by the substantive laws of Switzerland.

The Parties will use best efforts to resolve any difference of opinion and dispute in friendly negotiations.

If friendly negotiations do not result in an Agreement within 90 days, all disputes arising out of or in connection with this Agreement or any purchase Agreement concluded pursuant to it shall be exclusively and finally settled under the Swiss Court

13. Modifications

This agreement and the Annex might be modified or updated but only in writing, provided both Parties agree.

Wooshin Labottach Co., Ltd	Prospectia Overseas Consulting SL
By: _____	77909705B LLUIS VILA (R: By: <u>B66560939</u>)
Name: Tack Soo Nam	Name: Lluís Vila Prat
Title: President	Title: CEO
Email: wooshinnam@wooshinmed.com wooshinlabo-bd@wooshinmed.com	Email: lvila@prospectia.es

APPENDIX I

TERRITORY and PRODUCTS:

- Iran – Hastafarin
 - Lidocaine 5% Patch
- Kenya – Sisi Pharmaceuticals
 - Body Warmer Patch
 - Spiranto
 - Frio Pad
 - Kefentech

Wooshin Labottach Co., Ltd By: _____ Name: Tack Soo Nam Title: President Email: wooshinnam@wooshinmed.com wooshinlabo-bd@wooshinmed.com	Prospectia Overseas Consulting SL 77909705B LLUIS VILA (R: B66560939) By: <u>B66560939</u> Name: Lluís Vila Prat Title: CEO Email: lvila@prospectia.es
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